THE STATE OF NEW HAMPSHIRE
SUPREME COURT

Hillsborough Superior Court (Southern District) Docket Nos. 226-2022-CV-00233, 226-2022-CV-00236

603 Forward, et al.
v.
Scanlan and Formella

Appeal pursuant to Supreme Court Rule 7 from an order of the Hillsborough Superior Court (Southern District) denying a motion to intervene

RULE 7 NOTICE OF DISCRETIONARY APPEAL

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(Appealing Party)

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13. NATURE OF CASE AND RESULT

This appeal arises from two consolidated actions challenging the constitutionality of the recently enacted Senate Bill 418 ("SB 418"). SB 418, passed on March 31, 2022, and effective January 1, 2023, amends RSA ch. 659 and 660 to provide for an "affidavit ballot" for election day registrants who fail to establish their identities in the manner prescribed by statute. The votes cast by affidavit ballot are counted on election day, but if a voter fails to provide proof of qualification to vote within seven days the ballot is nullified and the votes cast by that ballot are deducted from the final vote totals "to be certified by the appropriate certifying authority." RSA 659:23-a, VI.

In June of 2022, the plaintiffs in the two consolidated actions sued the secretary of state and the attorney general alleging that wrongful voting (also known as voter fraud, see RSA 659:34) does not occur in New Hampshire and that SB 418 would therefore unreasonably interfere with the right to vote and invade a voter's privacy. Appendix ("Appx.") at 1-4, 242-43.

In both complaints, the plaintiffs alleged that SB 418 was adopted along a party-line vote, with the implication being that the motive of the Republicans in the general court in passing the legislation was to suppress the votes of Democratic voters. Appx. at 4, 24-25, 245.

In September, shortly after the state filed a motion to dismiss the consolidated actions, the New Hampshire Republican State Committee ("NHRSC") filed a motion to intervene to defend against the plaintiffs' claims. Appx. at 274. The interest the NHRSC asserted in support of its motion was essentially threefold. First, the NHRSC established that its own membership depends on the integrity of the state's primary elections because it is in the state primary that the delegates to the NHRSC's convention are elected by registered Republicans. Appx. at 278-79. It is these delegates who elect the members of the NHRSC in caucuses held after the state general election. Second, the NHRSC sought to protect the constitutional rights of Republican voters to vote and Republican candidates to be elected against de facto cancellation of Republican votes

by ballots cast by individuals not qualified to vote under New Hampshire law. Appx. at 279. It cited authority from across the country establishing that political parties are commonly allowed to intervene in actions challenging such statutory provisions as those governing voter qualifications. Appx. at 277-78. Third, the NHRSC noted that it would have to divert resources to reeducate staff, volunteers, and voters if the new affidavit ballot provisions were invalidated. Appx. at 279.

The plaintiffs objected to intervention both on the ground that the NHRSC did not meet the standard for intervention and that the NHRSC had retained its counsel to disqualify the judge assigned to the case, Charles Temple.[1] Appx. at 286-96. After the NHRSC filed its reply in support of its motion, Judge Temple recused himself from deciding the motion to intervene and transferred the motion to Judge Colburn for resolution with the proviso that if Judge Colburn granted intervention she would become the presiding judge in the case. Appx. at 370, 385.

Judge Colburn issued an order denying the NHRSC's motion on December 21, 2022. Post at 16-19. It is this order that the NHRSC now appeals.

14. ISSUES ON APPEAL

Separately number each issue you are appealing and for each issue: (a) state the issue; (b) explain why the acceptance criteria listed above support acceptance of that issue; and (c) if a ground for appeal is legal sufficiency of evidence, include a succinct statement of why the evidence is alleged to be insufficient as a matter of law.

A. Statement of Issues Presented

This notice of appeal raises two issues of first impression for this court as well as a third issue arising from an error constituting an unsustainable exercise of discretion. They are, respectively:

[1] Judge Temple and the NHRSC's counsel, Bryan Gould, and their families have been friends for over thirty years.

1. Whether the superior court erred in incorporating an adequate representation element drawn from federal law into New Hampshire's long-established standard for intervention.
2. Whether a state political party is entitled to intervene in litigation over the lawfulness of a statute prescribing how a prospective voter must establish his or her qualification to vote, particularly where a party in the litigation has placed at issue the political party's partisan motives in adopting the statute.
3. Whether the superior court committed an unsustainable exercise of discretion by failing to consider each of the factual grounds on which the NHRSC sought intervention.

B. Grounds for Acceptance of Each Issue

Issue 1: Whether the superior court erred in incorporating an adequate representation element drawn from federal law into New Hampshire's long-established standard for intervention.

New Hampshire's standard for intervention is liberal. N.H. Super. Ct. R. 15 provides that "any person shown to be interested may become a party to any civil action upon filing and service of an [a]ppearance and pleading briefly setting forth his or her relation to the cause . . . ." While the trial courts possess discretion to grant or deny intervention according to this standard, this court has stated that "a trial court should grant a motion to intervene if the party seeking to intervene has a right involved in the trial and a direct and apparent interest therein." Brzica v. Trustees of Dartmouth Coll., 147 N.H. 443, 446 (2002). Because of the simplicity of the New Hampshire standard, "the right of a party to intervene in pending litigation in this state has been rather freely allowed as a matter of practice." Id., quoting Scamman v. Sondheim, 97 N.H. 280, 281 (1952). An intervenor's interest must nonetheless be one that "would suffer if not indeed be sacrificed were the court to deny the privilege." In re Stapleford, 156 N.H. 260, 263 (2007).

Except in those cases in which the prospective intervenor has no discernible legal right affected by the litigation (see, e.g., Samyn-D'Elia Architects v. Satter Companies of N.E., Inc., 137 N.H. 174, 177-78 (1993)),

the supreme court's decisions reflect how freely New Hampshire allows intervention. See, e.g., In re Londonderry Neighborhood Coalition, 145 N.H. 201, 203 (2000); In re Goodlander, 161 N.H. 490, 506 (2011); Lamarche v. McCarthy, 158 N.H. 197, 200-201 (2008); and Snyder v. N.H. Sav. Bank, 134 N.H. 32, 34 (1991).

By contrast, the federal standard for intervention is substantially more restrictive. Fed. R. Civ. P. 24(a) provides, in pertinent part:

> On a timely motion, the court must permit anyone to intervene who:
>
> (1) is given an unconditional right to intervene by a federal statute; or
>
> (2) claims an interest relating to the property or transaction that is the subject of the action, and is so situated that disposing of the action may as a practical matter impair or impede the movant's ability to protect its interest, unless existing parties adequately represent that interest.

Emphasis supplied.

This adequate representation standard creates a higher bar to intervene in federal actions because it makes intervention dependent not on whether the prospective intervenor has a direct and apparent interest but on whether an original party has a sufficiently analogous interest to that of the prospective intervenor to be representative. This court, however, has never adopted the adequate representation standard by either rule change or a common law decision on intervention. Instead, it has consistently applied the rule that a "direct and apparent interest" that would "suffer" or "be sacrificed" is necessary to support intervention.

The superior court relied on four cases to support its conclusion that the NHRSC should not be allowed to intervene because the Office of the Attorney General would adequately represent its interests. Post at 19 n.1. The first of these, Mass. Food Ass'n v. Mass. Alcoholic Beverages Control Comm'n, 197 F.3d 560, 567 (1st. Cir. 1999) relied on the federal rule which, again, explicitly provides that intervention can be denied if the

prospective intervenor's interest will be adequately protected by a party to the action. The second case, In re Stapleford, 156 N.H. 260, 262 (2007), held that because "minors do not have the same legal rights as do adults," including the right to "participate in litigation," the minor children seeking to intervene in their parents' divorce action in that case would not be permitted to do so because their interests, by statute, were represented by the guardian ad litem. Id. at 263-65. The court made a point of observing that because the rights at issue were inherently constrained by law, it was not applying "the traditional intervention test." Id. at 263.

The third case on which the superior court relied, Tweed v. Town of Nottingham, 2019 WL 12875417, at *7-8 (N.H. Super. Aug. 6, 2019), was a decision of another superior court judge. Tweed cited Stapleford for the proposition that New Hampshire trial courts can deny intervention as a general proposition if a party to the litigation – in that case, the town government – adequately represents the interests of the prospective intervenors (who in that case were town residents). Post at 19 n.1. The final case the court below cited was G2003B, LLC v. Town of Weare, 153 N.H. 725, 726 (2006) which it summarized in the following parenthetical: "(noting that trial court allowed town residents to intervene to defend validity of ordinance where town admitted it did not intend to provide a 'vigorous defense of the action')." Id.

The authorities on which the superior court relied underscore the need for this court to decide whether a prospective intervenor other than a minor can be denied intervention on the ground that a party to the case adequately represents the interests the prospective intervenor seeks to protect. Both Tweed and the superior court's order below construe Stapleford as adopting a general standard of adequate representation even though Stapleford itself took pains to explain that because the prospective intervenors were minors it was not applying the traditional test of intervention. The superior court also interpreted G2003B, LLC as implying that the prospective intervenors in that case would not have been allowed to intervene had the town provided a "vigorous defense of the action." G2003B, however, did not consider or rule upon whether the adequate representation standard is a part of the New Hampshire test for intervention.

The superior courts have now on at least two occasions misconstrued Stapleford as a de facto engrafting of what amounts to the federal adequate representation standard onto New Hampshire's traditional test for intervention. This court has never adopted an adequate representation standard in any fashion outside of the unique context of whether minors should be allowed to intervene in their parents' divorce proceedings where they are represented, as required by state law, by a guardian ad litem. Accordingly, the court should accept the first issue raised by this notice of appeal for briefing and decision.

Issue 2: Whether a state political party is entitled to intervene in litigation over the lawfulness of a statute prescribing how a prospective voter must establish his or her qualification to vote, particularly where a party in the litigation has placed at issue the political party's partisan motives in adopting the statute.

In effect, the superior court ruled that, absent extenuating circumstances like a conflict of interest, a state political party cannot intervene in an action seeking to set aside a voter qualification statute if the attorney general is defending the law. Post at 18-19. The court did not conclude that the NHRSC has no interest in defending against plaintiffs' claims. Indeed, it implicitly assumed without deciding that the NHRSC has an interest in the validity of SB 418.

To avoid another appeal after remand, and as a matter of judicial efficiency, this court should address whether state political parties must be allowed to intervene in actions that seek to invalidate statutory provisions that attempt to achieve the delicate balance of ensuring that qualified individuals can vote while preventing the cancellation of such an individual's vote by someone who is not qualified to cast a ballot.

In one case, the superior court has held that a political party (in that case, the Republican National Committee or "RNC") could intervene to protect its interest in the statutory procedure for absentee registration and voting. American Federation of Teachers, et al. v. Gardner, et al., No. 218-2020-CV-0570, at 6 (N.H. Super. Ct. Sept. 4, 2020) (Among other things the court found that "[e]lecting Republican candidates to office and ensuring high turnout of voters is clearly a prime function and interest of"

the RNC). Appx. at 279-80.[2] This appeal presents the court with an opportunity to resolve the question whether American Federation correctly held that political parties generally have a sufficient interest in the law governing voter qualifications to intervene in actions seeking to invalidate statutes defining or regulating those qualifications, irrespective of whether the state is defending their validity.

In the alternative, this court should direct the superior court on remand to grant the NHRSC's motion to intervene under the particular facts of this case. In addition to NHRSC's interest in the law governing voter qualifications, the complaints allege that SB 418 was a partisan attempt to unlawfully interfere with the right to vote of Democratic Party voters (Appx. at 24-25, 294, n.8), it is uncontested that the members of the NHRSC are elected by delegates who are in turn elected at a state primary by what are supposed to be qualified Republican voters, and the NHRSC will have to divert resources to reeducate its staff, volunteers, and voters if SB 418 is invalidated. As a matter of law, then, the NHRSC has a direct and apparent interest in the outcome of the litigation that will likely be adversely affected if the plaintiffs prevail.

Even if the court does decide to adopt the adequate representation standard, the NHRSC should still be granted intervention. Federal courts across the country usually hold that political parties have a sufficient interest in litigation over the substantive provisions of election-related statutes to intervene in actions challenging those provisions, even where the state is defending the law. Appx. at 277-78. The NHRSC has done much more than make the required "minimal" showing that the Attorney General's office would not adequately represent its interests, which is all that is required. Notably, there is no presumption, even under the federal standard, of adequate representation unless parties' "interests overlap fully."

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[2]Citing federal law, the court also noted that adequacy of representation was "a consideration" but rejected it as a basis to deny intervention in that instance. Appx. at 280. This further underscores the need for an authoritative decision from this court as to whether adequacy of representation is a factor to be considered under the traditional test for intervention.

See Trbovich v. United Mine Workers, 404 U.S. 528 (1972); see also Berger v. North Carolina State Conf. of the NAACP, 142 S. Ct. 2191 (2022). As discussed above, NHRSC's interests are unique from the state's, are not adequately represented by the state, and do not overlap with the separate and distinct interests the state is pursuing in this case. Under either standard, intervention should be granted.

Concededly, there are also conflicting federal decisions applying the federal standard, but the fact that federal courts commonly grant intervention to political parties in such cases despite the more rigorous standard militates in favor of a decision by this court that political parties should be allowed to intervene in cases like this one as a matter of law. Accordingly, the NHRSC respectfully requests that the court accept the second issue raised by this notice of appeal for briefing and decision.

Issue 3: Whether the superior court committed an unsustainable exercise of discretion by failing to consider each of the factual grounds on which the NHRSC sought intervention.

In its analysis of the NHRSC's arguments on its motion to intervene, the superior court unsustainably exercised its discretion when it failed to consider the interests the NHRSC asserted in support of intervention. As rendered by the superior court, the NHRSC "seeks to intervene to 'represent itself, registered Republicans, and its members, in preventing the loss of the protections of fair elections that would result from the invalidation of SB 418.'" Post at 18. This characterization of the NHRSC's interests does not fairly reflect all of the interests demonstrated by the NHRSC in its papers. Nowhere in the court's order did it acknowledge that the NHRSC's members are elected by delegates who are themselves elected in the state primary.[3] This selection process directly ties the integrity of the state's elections to the composition of the NHRSC's governing body. Nor did the order mention the NHRSC's interest in preventing the diversion of

[3]The NHRSC explained this process for determining its membership in greater detail in its papers: essentially the delegates are elected by popular vote and then convene in a caucus to select the NHRSC's members, who comprise the governing body of the NHRSC. Appx. at 373.

its resources to reeducation of its staff, volunteers, and voters if the law is invalidated.

For the court's exercise of discretion to be sustainable, the court must actually consider the grounds asserted by a prospective intervenor to support intervention. In this case, the superior court did not so much as mention the NHRSC's interest in voter qualification statutes because of the direct impact it can have on the membership of the NHRSC, not to mention the other two proffered interests. Its failure to consider or address these bases for intervention was an unsustainable exercise of discretion, and the NHRSC respectfully requests that the court accept the third issue presented by this notice of appeal for briefing and decision.

16. CERTIFICATIONS

I hereby certify that every issue specifically raised has been presented to the court below and has been properly preserved for appellate review by a contemporaneous objection or, where appropriate, by a properly filed pleading. To the extent that an unpreserved issue is raised as plain error, I hereby certify that I have specifically identified that issue as plain error in section 14.

I hereby certify that on or before the date below, copies of this notice of appeal were served on all parties to the case and were filed with the clerk of the court from which the appeal is taken in accordance with Supreme Court Rules 5(1) and 26(2) and with Rule 18 of the Supplemental Rules of the Supreme Court.

Respectfully submitted,

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